MASTER EVENT AGREEMENT

THIS MASTER EVENT AGREEMENT (hereinafter referred to as "Agreement") is made and entered into at Mumbai on the _____day of _____, 2016 by and between

BENNETT, COLEMAN AND COMPANY LIMITED, a company incorporated under the Companies Act, 1956, having its registered office at The Times of India Building, Dr. D.N. Road, Mumbai 400 001, CIN No. U22120MH1913PLC000391 hereinafter referred to as the 'BCCL' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the ONE PART

AND

_____, a company incorporated under the Companies Act, 1956, having its registered office at _____, CIN No. _____ hereinafter referred to as the 'VENDOR/ Organizer' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the ONE PART

BCCL and VENDOR/ Organizer are hereinafter referred singly as the "Party" and collectively as the "Parties".

WHEREAS:

A. BCCL is inter alia, engaged in the business of printing, publishing and/or marketing newspapers, magazines and periodicals and advertising and organising, managing and conducting various events;

B. VENDOR is engaged in _____.

C. BCCL promotes and markets several such events in its publications through advertisements and is desirous of promoting the Events (defined later) conceptualized, organised and managed by the Organiser. The Organiser has represented to BCCL that the Organiser possesses the necessary expertise to organise and manage the Events;

D. BCCL and the Organiser have entered into this Master Event Agreement for the purpose of recording the terms and conditions for Events which are to be organised and managed by the Organiser and promoted by BCCL, during the term of this Agreement.

E. The events which include exhibitions, conferences and trade fairs held at various places which are organised and managed by the Organiser and promoted by BCCL shall form a part of this Agreement and to which the terms and conditions as stipulated in this Agreement shall apply. and will (hereinafter referred to as "**Event**" or the "**Events**");

F. This Agreement shall be supplemented with such additional terms and conditions specific and relevant to each and every such Event as may be organised and managed by the Organiser and promoted by BCCL during the term of this Agreement, as may be mutually agreed between the Parties prior to either Party commencing any activity in relation to any such Event. Such additional terms and conditions shall be considered to be a part of this Agreement and shall be read with this Agreement .Any breach of such additional terms and conditions shall be deemed to be a breach of this Agreement.

NOW THEREFORE IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1. SCOPE OF THE AGREEMENT

1.1 Subject to the terms and conditions hereinafter contained, BCCL shall, for the consideration herein mentioned, promote the Events through advertisements in BCCL Publications (defined hereinafter) and the Organiser shall be responsible for organisation, management and necessary co-ordination for the Events. It is further clarified between the Parties that BCCL is not and shall not be considered as a sponsor of any Event.

1.2 BCCL shall, on behalf of the Organiser, advertise, promote, exhibit, make known and propagate the Events of the Organiser only by way of publishing advertisements in its publications on a non-exclusive basis (these acts hereinafter referred to as "**the Promotion**"). BCCL shall publish the advertisements in the newspapers, magazines and other publications circulating in such regions as may be separately agreed with the Organiser in writing (hereinafter referred to as "**BCCL Publications**").

2. OBLIGATIONS OF THE PARTIES PRIOR TO AN EVENT

2.1 The Organiser shall be required to obtain the following approvals from the Response Head/Director (Response) of BCCL in relation to each Event:

(a) In-principle approval in relation to each Event: For the purpose of obtaining the said approval, the Organiser shall be required to submit to BCCL a written proposal containing all the necessary details in relation to the concept of the Event and such other details as stated in **Annexure I** of this Agreement ("**Concept Note**"). The Concept Note shall be submitted by the Organiser to BCCL immediately on conceptualisation before the commencement of any sales activity (as defined in Annexure I) and always a minimum four months prior to the proposed date of the Event. The Concept Note shall be discussed and mutually agreed between BCCL and Organiser. BCCL will revert with the proposed selling equation within __ working days on receipt of the final agreed Concept Note.

(b) Selling Equations and Transfer Charges: Within __ days of the receipt of the in-principal approval of the Concept Note, the Organiser agrees to submit to BCCL, in writing, the selling equations, transfer charges and such other details as stated in **Annexure I** of this Agreement. In addition, the Organiser agrees to provide all the relevant information to BCCL in order to assist BCCL to ascertain the minimum guarantee for revenue transfer to BCCL.

(c) Client-wise booking details in relation to each Event: The Organiser agrees to provide to BCCL the client-wise booking details namely Name, size of the stall, location of the stall identified in the floor plan and status (reserved or confirmed) in relation to each Event along with the complete floor plans of the venue of the Event, location, size, Name & status etc. on a weekly basis from the commencement of the selling cycle till the day prior to the event. (Refer - Annexure II).

(d) Promotional/publicity material in relation to an Event: The Organiser agrees to submit all the promotional / publicity materials of an Event to BCCL, fifteen (15) days prior to the commencement of the sales activity or display of the said materials. The promotional/publicity materials shall include without limitation the brochures, mailers, e-brochures, website, banners, posters and media plan consumption towards stall route. (Refer – Annexure II).

(e) Approval in relation to sponsorship from and/or association with any other organization/client shall be required to be obtained in writing by the Organiser from BCCL. Post receipt of all supporting documents, BCCL shall revert to the Organiser with approval or rejection for a particular Event within __ working days.

2.2 In addition, the Organiser shall be required to submit for permission all collaterals including but not limited to base creative of advertisements, brochures, mailers, E-Brochures, Website and any other promotional materials relevant to the Event to the legal cell of BCCL __ days prior to selling cycle prior to publication and circulation of the same. BCCL shall within __ days from submission of the above mentioned collaterals provide its response in relation to the same to the Organiser. (Refer Annexure II).

2.3 The Organiser shall also be required to obtain a prior written consent of BCCL in relation to the usage of the specific logo in relation to the Event. Any deviation from the logo after receiving the said consent of BCCL shall be permissible if and only if the Organiser obtains a subsequent written approval of BCCL in relation to the said deviation.

2.4 In addition, all plans in relation to promotional activities of the Event, excluding non print activities, shall be done with mutual discussions between the Parties. The Organiser will share the media plan, including non – print plans with BCCL and the Organiser will go ahead with the plans that are mutually agreed. The Organiser shall have the right to negotiate with other media as regards costs in such non-print media. The Organiser agrees and understands that in the event the said promotional plans are finalised without approval of BCCL, BCCL shall have the unanimous right to cancel all promotion of the Event and such act by the Organiser shall be deemed to be a breach of this Agreement.

2.5 In light of the benefits accruing to Organiser in pursuance to this Agreement, and to ensure that all Events that shall be organised receive its full attention, the Organiser on its own volition agrees that in case it wishes to organise any event which is similar or same to the Events, it shall obtain a prior written consent of BCCL which shall not be unreasonably withheld by BCCL. Also the Organiser shall not organise any event without BCCL's tie up in the same premises or Structure on the same dates of an Event with BCCL tie up.

2.6 BCCL agrees to execute and enter into a Non-Disclosure Agreement with the Organiser in relation to the details of the visitors and/or exhibitors to the Event which the Organiser agrees to provide to BCCL. The terms and conditions of the Non-Disclosure Agreement shall be mutually decided upon by the Parties.

3. OBLIGATIONS OF THE PARTIES AFTER THE EVENT

3.1 The Organiser shall be required to submit the following to BCCL:

(a) An audit sheet in the format annexed hereto (Refer **Annexure IV)**. The said updated audit sheet shall be required to be submitted along with the floor plans one day prior to or on the date of commencement of the Event; The Final Audit sheet must be submitted to BCCL within 7 days after the completion of the Event.

(b) Duly audited and reconciled visitor's ticket sharing collections for an Event within 7 (seven) days of the conclusion an Event in the format annexed hereto (see **Annexure VI**);

A separate payment cheque along with the summary statement should be submitted to the person designated by BCCL.

3.2 The Organiser agrees to the following:

a) Accounts reconciliation shall be completed within 15 days from closing of the event and amount payable to BCCL shall be paid within 15 days from the date reconciliation is complete.
b) The disproportionate size client advertisements cannot be released by the Organizer in lieu of the stall route advertisement portion unless approved by BCCL on case to case basis. In such an eventuality, the difference between the actual advertisement size and the size

allowed as per stall route equation will be calculated at applicable Maximizer rates on dates of consumption and debited to the Organizer's account, and the amount collected as per BCCL's credit terms with the client/ releasing agency.

c) Stall route ads must be consumed before the completion of the Event.
d) In case where the Organiser feels that the advertisements to be published in lieu of stall route is high, and if the same if permitted by BCCL, such advertisements can be consumed in an Event not later than the following 31st March i.e. on or before the end of the ongoing financial year on a case to case basis. BCCL shall put forward a request in writing 15 days prior to the date of completion of the subject Event.

4. ADDITIONAL OBLIGATIONS OF THE ORGANISER

The Organiser shall endeavour to make the Events successful and in that regard, shall be responsible for organising, end-to-end management and entire co-ordination for the Events and bear and incur on its own all the necessary costs and expenses and do all the acts, things and matters including but not limited to the following:

(i) To hire the venue for the Events.

(ii) To pay and bear all rent, rates, taxes and charges with respect to the Events.

(iii) To obtain all necessary licences, permissions and approvals as are required for the purpose of conducting the Events from various statutory authorities including but not limited to local bodies, police authorities and be solely liable for all compliances and stipulations and condition that may be imposed while granting such licences, permissions and approvals.

(iv) To make all arrangements at the venue of the Event for successful conduct of the Events including but not limited to electricity, telephone and fax lines, cafeteria, toilets, car parking, security at the venue, first aid kits, Fire fighting equipment, and safety.

(v) To fully insure the Events and the constituents of the Events including but not limited to all the furniture, fittings, installations, materials, equipments, personnel from all possible perils and losses including but not limited to by fire, earthquake, natural calamities, riots, acts of terrorism, claims of third parties for losses due to bodily injury and damage to property. In this regard, the cost and expenses of insurance shall be solely borne by the Organiser. Notwithstanding anything to the contrary, the Organiser shall always keep BCCL fully indemnified against all the above and other losses.

(vi) To display and put up publicity and promotional material(s) including but not limited to hoarding, posters, banners, sign board regarding the Events at the Venue.

(vii) To use the logo of the Events in all advertisements, venue site, notices, mailers, letters, entry passes, invitations, pre and post Events communications, feedback forms etc addressed to all concerned. The Organizer shall obtain prior written approval of BCCL for all publicity/promotional material(s) prior to circulating, distributing, sharing, communicating or printing of the same.

(viii) To prominently display the logo of the Events and logo of 'BCCL/TIMES' or such other Intellectual Property (defined later) agreed to be provided to the Organiser by BCCL at all important locations at or around the place of the Events during the entire tenure of any Events and of a size that will be commensurate with the overall size of the location to get appropriate prominence. The Organiser may display their logo along with the logo of 'TIMES/BCCL' as provided by BCCL or such other

Intellectual Property agreed to be provided to the Organiser by BCCL. However, under no circumstances, the size, font and prominence of the Organizer's logo should be bigger or better than that of 'TIMES/BCCL' or such other Intellectual Property agreed to be provided to the Organiser by BCCL.

(ix) To collect the editorial matter from clients and provide the same to BCCL at least a week prior to the scheduled date of publication of the special features.

(x) To ensure that all relevant communication(s), brochures, mailers, print, banners and posters where BCCL's Logo is to appear must be approved by BCCL in writing.

(xi) To ensure that all brochures/mailers include the names of BCCL Representatives from respective branch office / sub offices.

(xii) To ensure that for all functions/sub-events and the on-site branding where BCCL logo appears, the media plan is approved in advance by BCCL in writing.

(xiii) To ensure that for Event, where Organiser is using BCCL Logo, significant advertisement income should accrue to BCCL, failing which BCCL shall raise bill for using BCCL Logo. Further, the significant advertisement income as mentioned above will be mutually agreed upon by the Organiser and BCCL prior to every Event.

(xiv) For all events where BCCL & Organisers are working together, the Organisers shall deliver to BCCL the brochures, literature etc as soon as they are printed so as to enable BCCL to market it at the same time as the Organiser.

(xv) Organisers shall not make any commitment relating to edit in Event features to any advertiser without obtaining the prior written approval of BCCL.

(xvi) The Organiser hereby gives the first right of refusal to BCCL in case of promotions of the Events in any media or medium other than BCCL's Publications, on mutually agreed terms and conditions, prior to such promotion.

(xvii) The Organiser shall develop and maintain the database of the visitors to the Event and the feedback of the visitors on the Event and provide the same to BCCL at the earliest, provided BCCL complies with the condition stated in Clause 2.6 herein.

5. CONSIDERATION

5.1 During the tenure of this Agreement, as a consideration for promotion of the Events by BCCL in BCCL Publications, the Organiser hereby agrees to provide stalls at the venue of the Events to the advertisers of BCCL at a pre-determined rate and/or make such other payment to BCCL as agreed in writing by and between the Organiser and BCCL in respect of each and every Event. Both the Parties agree to consume pre-determined part of the revenue generated (by providing stalls as mentioned above) by promoting in the special feature and towards pre-event promotion in the BCCL Publications to build up and promote the Events.

BCCL shall endeavour to pay transfer amounts in lieu of ad route clients with in 60 days of receipt of all relevant documents and supporting necessary to process payments.

5.2 LOC will be entered for each Event covering all the commercial / financial elements and BCCL shall in its sole discretion decide to take the Event forward in accordance with this Agreement.

5.3 The Payments due to Organizer from BCCL shall be released within 30 days of submission of Invoices.

6. JOINT OBLIGATIONS OF BCCL AND THE ORGANISER

a. Not to delegate any of the functions/assignments to be performed by either party otherwise than with the express written consent of the other party
b. At all times to endeavour to perform the services mentioned herein to the best of their abilities.
c. To promote and generate publicity for the Event.
d. To ensure at all times, proper conduct of personnel, hired or engaged by them.

7. REPRESENTATIONS, WARRANTIES AND COVENANTS OF BCCL AND THE ORGANISER

For the purposes of this Agreement, both BCCL and the Organiser represent, warrant and covenant that:

a. it is fully organized, authorized and entitled to enter into this Agreement;

b. it has the necessary power to execute, deliver and perform its obligations under this Agreement and all necessary corporate, shareholder and other sanction has been taken to authorize such execution, delivery and performance;

c. it possesses the expertise, knowledge, resources, logistics and other requisites necessary for fulfilling the obligations herein;

d. there are no pending claims, actions, suits or proceedings against it or affecting any of its assets and there has been no event or occurrence which, in each case, might reasonably be expected to have a material adverse effect on its ability to perform its obligations hereunder;

e. the execution, delivery and performance of its obligations under this Agreement do not and will not contravene any law, regulation, order, judgment or decree applicable to it or conflict with or result in any breach or default under any agreement, instrument, regulation, license or authorization binding upon it or any of its assets, any confidentiality, non-compete or similar or other obligations with any person or entity or party.

f. Not to do any act, matter or thing during the term of this Agreement which is prohibited by or which is contrary to the provisions of any law or rule or regulation or that is in any manner prejudicial to the interests of each other.

g. To ensure that uniformity and worldwide coverage is accorded to its Events, the Organiser agrees on its own volition that it shall not, during the subsistence of this Agreement, enter into similar agreement or arrangement in relation to this Agreement with any party without prior consent of BCCL in writing.

However, BCCL does not hereby and shall not at any time be required to give any specific warranty of success of the Event as a result of the Promotion in BCCL Publications in terms of this Agreement and shall in no way be liable for failure of such Events.

8. INTELLECTUAL PROPERTY RIGHTS

8.1 "**Intellectual Property Rights**" shall include any and all rights, whether under statute or otherwise, in respect of marks, trademark(s), name(s), brand(s), patents, designs, copyright, confidential information, trade secrets, or any combination thereof, and any

other intellectual property rights whether or not registered or capable of registration and whether or not subsisting in India or in any other part of the world.

8.2 The Parties understand that for the purpose of creation of an appropriate logo for the Event, Intellectual Property Rights of either party may be used as inputs. Notwithstanding anything contained herein, the Organizer agrees that Organizer shall not share, communicate, distribute, print and/or circulate any material(s), information, written or otherwise, whether or not in relation to the creation of the logo and whether or not in relation to any other activity pertaining to any Event, without obtaining prior written consent of BCCL, especially in the event any Intellectual Property Rights owned by or belonging to BCCL or any element thereof are proposed to be used by the Organizer for any purpose whatsoever. This obligation shall extend to all situations, including where the Organizer is not sure if a particular Intellectual Property Right that is being used belongs to or is owned by BCCL or not.

8.3 The Parties understand and agree that, notwithstanding anything contained herein, any and all of the Intellectual Property Rights made available/accessible by a Party to the other Party for the purpose of this Agreement shall, at all times, remain the sole and exclusive property of the Party to which the Intellectual Property Rights belong. Nothing contained herein shall be construed as granting a license or effecting an assignment or a transfer in relation to the Intellectual Property Rights owned by a Party in favour of the other Party.

8.4 The Organizer further agrees and accepts that nothing contained herein shall permit the Organizer to use any Intellectual Property Rights of BCCL, including but not limited to the use of BCCL's Intellectual Property Rights as part of the logo created for an Event or in any manner whatsoever, after concerned Event is over and/or the termination of this Agreement.

8.5 Both the Parties hereby covenant that while making use of other Party's Intellectual Property Rights in accordance with the terms and conditions stipulated herein, the Parties shall take utmost care to not infringe, pass-off or in any manner violate, dilute, restrict or alienate the said rights of the other Party and it shall at all times safeguard and protect other Party's rights in the same.

8.6 Each Party covenants to the other Party that the Intellectual Property Rights comprised in their respective deliverables under this Agreement shall not infringe in any manner, any trademark, copyright, patent, trade secret or other property or intellectual property rights of any third party.

9. TERM

Unless terminated earlier, this Agreement shall be valid for a period of Two years commencing from the date of this Agreement, which may be renewed for following periods of 1 year each at the option of BCCL. The representations and warranties of the Parties and the Indemnity clause, and any unfulfilled obligations shall survive the term and termination of this Agreement.

10. TERMINATION

This Agreement may be terminated by either party at any time without assigning any reason whatsoever by giving two month's notice in writing to the other Party, subject to fulfilment of the respective obligations set out in this Agreement till the effective date of termination, to the satisfaction of the other Party.

Notwithstanding what is stated hereinabove, BCCL shall have the right to terminate this Agreement forthwith by giving notice in writing addressed to the Organiser, in case of happening or occurrence of events including but not restricted to the following:

(a) Breach of any of the terms and conditions, of this Agreement or such additional terms and condition as may be agreed between the parties in writing.

(b) Failure to obtain or maintain any license, suspension or revocation of any license necessary for the conduct of Organiser's business or the Event pursuant to this Agreement.

(c) If the Organizer fails to maintain quality of the Event as desired by BCCL.

(d) If serious criminal allegations are made against the Organiser.

(e) Cancellation of the said Event, except due to default of BCCL.

In event of any force majeure events as mentioned in clause 15 herein below, BCCL may terminate this Agreement if such force majeure event continues for more than 7 days.

In the event of early termination or determination of this Agreement ,the Organiser shall pay to BCCL within 15 working days, 50% of the charges for publication of advertisements in various BCCL Publications and/or other media properties owned and controlled by BCCL, as per its policy and tariff published at that relevant point of time and known as "Maximiser"

11. INDEMNITY

a. Organiser hereby agrees to indemnify, defend and hold BCCL safe, harmless and indemnified including its officers, directors and employees to the fullest extent permitted by law, from and against any and all third party claims, demands, suits, liabilities, damages and proceedings that may be generated by performing BCCL's rights and obligations hereunder including infringement of intellectual property rights, breach or non-performance of any contractual obligations comprised within this Agreement, defamation, libel, slander, plagiarism, invasion of privacy, or any other acts. The Organiser shall be liable to compensate BCCL to the extent of damage or loss caused to BCCL and directly arising out of such breach including but not limited to the following:

i. Misuse of authorization by the Organiser or by any of its employee/representatives.
ii. Any accident on account of fire, smoke, explosion, short circuit or due to any other reason, that may occur at the site of the Events and claims arising from such accident in the nature of property damage or bodily injury or any other claims
iii. Failure on the part of the Organiser to obtain and maintain all the required permissions to conduct the Events.
iv. Claims made by personnel hired by the Organiser claiming that they are employees of BCCL.
v. Any action or inaction on the part of the Organiser or any of its employee/representative to take appropriate health and safety precautions.
vi. Breach of any terms and conditions herein contained.

b. BCCL also hereby agrees and undertakes to indemnify and forever keep indemnified the Organiser from and against any costs, damages, losses, suits, proceedings, notices and claims suffered by the Organiser arising out of any action, inaction or default in not complying with any of the terms and conditions of this Agreement.

12. FAILURE TO ENFORCE

The failure of either party to enforce at any time any of the provisions of this Agreement shall not be considered to be a waiver of the right of such party thereafter to enforce each and every such provision.

13. PRINCIPAL-TO-PRINCIPAL BASIS

It is hereby understood and agreed that this Agreement is on a Principal to Principal basis and neither Party shall describe itself as an agent, partner, or representative of the other Party, or pledge the credit of the other party in any way or make any representations or give any warranties to any third party which may require the other party to undertake or be liable for, whether directly or indirectly, any obligation and/or responsibility to any third party or enter into contracts on behalf of the other Party.

14. SEVERABILITY

If any provision of this Agreement shall be found by any Court or Government or administrative body of competent jurisdiction to be invalid or unenforceable, the invalidity or un-enforceability of such provision shall not affect the other provisions of this Agreement and all provisions not affected by such invalidity or un-enforceability shall remain in full force and effect.

15. FORCE MAJEURE

Organiser shall not be liable for any failure to perform any of its obligations under this Agreement if the performance is prevented, hindered, delayed by a Force Majeure Event and in such case its obligations shall be suspended for so long as the Force Majeure Event continues. Each Party shall promptly inform the other of the existence of a Force Majeure Event and shall consult together to find a mutually acceptable solution. For the purposes of this clause "Force Majeure Event" includes any event due to any cause beyond the reasonable control of the concerned party including but not limited to, unavailability of any communication system, sabotage, fire, flood, earthquake, explosion, civil commotion, strikes or industrial action of any kind, riots, insurrection, war, act of Gods, actions of the Government/Judicial/Local Authority for no fault of the Organiser.

16. NOTICE

Any notice or other communication required or permitted to be given between the parties under this Agreement shall be given in writing at the following address or such other addresses as may be intimated from time to time.

Bennett, Coleman and Company Limited,
The Times of India Building,
Dr. D. N. Road, Mumbai – 400 001
Attention: _____

Organizer:
_____

17. ENTIRE AGREEMENT

This Agreement supersedes earlier agreements between the parties on this subject matter hereof.

18. AMENDMENTS

Either Party shall have the right to effect additions or alterations to the terms and conditions herein contained but no such addition or alteration shall be valid and binding unless signed by the authorised representatives of each of the parties.

19. LIABILITY

i. In no event will BCCL be liable to the Organiser for any indirect, special, incidental or consequential damages including without limitation, loss of profits, arising out of any failure or alleged failure by BCCL to perform any of its obligations under this Agreement. The foregoing limitation of liability will apply regardless of the cause of action under which such damages are sought without limitations, breach of contract, negligence, strict liability or tort.

ii. Organiser shall be liable to BCCL by virtue of termination of this agreement (for any reason whatsoever) for actual loss of profit or on account of any actual expenditure incurred by BCCL due to such termination. Any such loss of profit shall be restricted to current event only. The statement for such expenditure / loss of profit provided by BCCL shall be deemed to be final and conclusive on both Parties.

20. ARBITRATION

In the event that any dispute, difference, claim or question arises out of this Agreement, the parties undertake to use all reasonable endeavours to resolve such disputes amicably. If the disputes and differences cannot be settled amicably within 30 days of the dispute arising, all such disputes and differences arising between the parties hereto in connection with this Agreement or the interpretation hereof or anything done or omitted to be done pursuant hereto or the performance of this Agreement shall be referred to sole Arbitrator appointed by BCCL under the provisions of the Arbitration and Conciliation Act 1996 or as amended thereof. The venue of the Arbitration shall be Mumbai and the language shall be English.
Both the Parties shall bear their own cost of arbitration.

21. JURISDICTION

This Agreement shall be subject to the exclusive jurisdiction of the Courts at Mumbai alone.

IN WITNESS WHEREOF the parties hereto have executed these presents the day and year written first hereinabove.

SIGNED AND DELIVERED)
By the within named
Bennett, Coleman and Company Limited)
by the hand of its authorised)
signatory **of**)